

of those goods across borders via the channels of foreign or interstate commerce. *Ibid.*
Id. at 458.

Whether Plaintiff and her coworkers were actively engaged in transportation of goods across the border is a question not answered by Defendant's evidence. Defendant has provided evidence of, at best, infrequent crossing into Nevada. Defendant did not adequately address infrequent crossings of the border. While not controlling, this has been addressed in the Third Circuit where an Uber driver argued that Uber drivers were transportation workers exempt from the FAA.

Singh emphasizes a single sentence—the Court's statement that "any class of workers directly involved in transporting goods across state or international borders falls within § 1's exemption." *Saxon*, 142 S. Ct. at 1789. As the rest of the opinion makes clear, this does not mean that rare border crossings are enough to make interstate transportation central to a class of workers' job description. Rather, we consider the "actual work" that class members "typically carry out." *Id.* at 1788. Incidental border crossings are insufficient if a class of workers is not typically involved with the channels of interstate commerce. *Wallace*, 970 F.3d at 800 ("[S]omeone whose occupation is not defined by its engagement in interstate commerce does not qualify for the exemption just because she occasionally performs that kind of work."); *Waithaka*, 966 F.3d at 25 (noting that crossing state lines is not the "touchstone of the exemption's test").

Singh v. Uber Techs, Inc. (2023) 67 F. 4th 550, 559.

Defendant has simply failed to meet its burden of showing that Plaintiff is exempt from the FAA. The evidence shows that Plaintiff was a truck driver who hauled materials for construction of roads or highways in California and only occasionally crossed the border to obtain such materials. Occasional work is insufficient. Merely hauling materials that are used to build roads or highways that can be driven on to leave the state or support interstate commerce is also too attenuated and Defendant provided insufficient support for any argument in that regard.

Plaintiff's Motion to Compel Arbitration is **GRANTED**. The matter is stayed pending arbitration and all currently pending hearing dates are vacated. The matter will be on calendar on **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for review regarding status of arbitration. The parties are ordered to file either a joint or separate status statements no less than five court days prior to the hearing. Plaintiff provided a proposed Order, however it will be modified as Plaintiff listed the American Arbitration Association when the agreement calls for arbitration through JAMS.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien seek admission pro hac vice in order to represent Defendant Medtronic, Inc. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application. One of the requirements is that the application is required to be served "on all parties who have appeared in the cause." CRC 9.40(c)(1). The accompanying proofs of service indicate service on the former counsel of Defendants Brian Davis, PA, Foundation Physicians Medical Group, and Bradley Jones, MD. The Applications were filed on July 21, 2026. Substitutions of attorney for these Defendants' subbing in new counsel were filed on July 2, 2026, and July 10, 2026, prior to service of the Applications. The Applications are **DENIED** without prejudice for failure to serve in compliance with CRC 9.40.